

25VECV02885 25VECV02885

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-05

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Case Number: 25VECV02885 Hearing Date: August 5, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MICHAEL BENEDETTO, an individual,

Plaintiff,

vs.

BERNARD D. MONDERER, M.D., an individual; and DOES 1-50, inclusive

Defendant.

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CASE NO: 25VECV02885

[TENTATIVE] RULING RE: DEFENDANT’S MOTIONS TO COMPEL PLAINTIFF’S RESPONSES TO INITIAL DISCOVERY

Dept. U

8:30 a.m.

August 5, 2026

BACKGROUND

This case is a medical negligence action filed by Plaintiff Michael Benedetto against Defendant Bernard D. Monderer, M.D.

On May 23, 2025, Plaintiff filed his complaint against Defendant, alleging: (1) medical negligence; (2) breach of fiduciary duty; (3) constructive fraud; and (4) lack of informed consent.

On November 7, 2025, Judge Valerie Salkin overruled in part and sustained in part, with leave to amend, Defendant’s demurrer to the complaint. The Court also granted, with leave to amend, Defendant’s motion to strike portions of the complaint. Plaintiff did not file an amended complaint.

On February 11, 2026, Defendant served Plaintiff with requests for production of documents (the “RFPs”), form interrogatories (the “FROGs”), and special interrogatories (the “SROGs”). Despite Defendant’s subsequent efforts to meet and confer, Plaintiff failed to timely respond to the RFPs, the FROGs, and the SROGs. (Brandmeyer decl., ¶¶ 2-3.)

On April 22, 2026, Defendant filed his motions to compel Plaintiff’s initial responses to the RFPs, the FROGs, and the SROGs.

As of 9:00 A.M. on July 3, 2026, Plaintiff had filed no opposition brief.

RULING

The motions are granted. No sanctions will issue at this time.

LEGAL STANDARD

Motion to Compel Initial Responses to Requests for Production of Documents

Where there has been no response to a demand to produce documents, the demanding party may seek an order compelling a response.¿ Code Civ. Proc., § 2031.300.

Motion to Compel Initial Responses to Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the demanding party may move for an order compelling a response.¿ Code Civ. Proc., § 2030.290.

DISCUSSION

Defendant moves to compel Plaintiff's initial responses to the RFPs, the FROGs, and the SROGs.

On February 11, 2026, Defendant served the RFPs, the FROGs, and the SROGs on Plaintiff. Despite Defendant's efforts to meet and confer, Plaintiff failed to timely respond to the RFPs, the FROGs, and the SROGs. Defendant is entitled to an order compelling Plaintiff to respond to the RFPs, the FROGs, and the SROGs, without stating objections, within thirty (30) days. See Code Civ. Proc., §§ 2030.290, 2031.300.

Defendant does not request attorneys' fees. No sanctions will issue at this time.

CONCLUSION

Plaintiff Michael Benedetto is ORDERED to provide initial responses to Defendant Bernard D. Monderer, M.D.'s Requests for Production of Documents, Form Interrogatories, and Special Interrogatories, without stating objections, within thirty (30) days of this order.

No sanctions will issue at this time.

Defendant Bernard D. Monderer, M.D. is ORDERED to give notice.

DATED: August 5, 2026

Lee S. Arian

Judge of the Superior Court